

21STCV46060 21STCV46060

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-09-23

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Case Number: 21STCV46060 Hearing Date: September 23, 2026 Dept: 11

Rahimi (21STCV46060)

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Tentative Ruling Re:

Motion for Order Re: Terminating Sanctions, New Deposition Date, and Attorney

Fees and Costs

Date: 9/23/26

Time: 11:00 am

Moving

Party: Cambridge Farms Kosher,

Inc. ("Defendant")

Opposing

Party: Victor Ariel Herrera

Aguilar

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Defendant's motion for order is moot as to the request for a terminating sanctions and the request that Aguilar appear for deposition. The motion was filed July 2, 2026. On September 10, 2026 Plaintiff filed opposition. On September 16, 2026, Cambridge Farms filed its reply.

The motion is not moot with respect to Defendant's claim for attorney's fees. The hearing on Defendant's motion is continued as to the request for attorney's fees and costs.

BACKGROUND

This is a wage-and-hour action.

Here, Defendant seeks an order "imposing terminating sanctions against Plaintiff Victor Ariel Herrera Aguilar" or, alternatively, ordering Aguilar "to appear for deposition examination on a date certain[.]" (Notice of Motion, p. 2.)

Defendant additionally seeks an award of attorney fees and costs against Aguilar in the amount of \$4,487.50. (See *ibid.*)

APPLICABLE LAW

Code of Civil Procedure section 2023.010(g) "makes 'disobeying a court order to provide discovery' a 'misuse of the discovery process.'" (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2026) ¶ 8:2146, emphasis in original.)

"Once a party or witness has been ordered to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery."
(*Id.* at ¶ 8:2145, emphasis in original.)

"However, numerous cases hold that severe sanctions (i.e., evidence or terminating sanctions) for failure to comply with a court order are allowed only where the failure was willful." (*Id.* at ¶ 8:2147.)

For a terminating sanction, the court may order any of the following against the disobeying party:

* “Striking that party’s pleadings or parts thereof[.]” (Id. at ¶ 8:2185, emphasis in original.)

* “Staying further proceedings by that party until the order is obeyed[.]” (Ibid., emphasis in original.)

* “Dismissing that party’s action, or any part thereof[.]” (Ibid., emphasis in original.)

* “Entering default judgment against that party.” (Ibid., emphasis in original.)

DISCUSSION

Arguments

Defendant

Defendant contends the Court should either grant terminating sanctions or set a new deposition date because:

* On May 22, 2026, the Court ordered Aguilar to “sit for deposition examination on June 24, 2026.” (Motion, p. 2; see also 5/22/26 Minute Order, p. 1.)

* Aguilar failed to appear for deposition on June 24th. (See Motion, pp. 2-4.)

* To date, Aguilar’s counsel “has not provided a proposed date for [] Aguilar’s deposition examination.” (Id. at p. 4; see also id. at pp. 5-7.)

Defendant also contends the Court should award attorney fees and costs because Aguilar “[m]isuse[d] [] the discovery process” by failing to comply with the May 22nd order. (Id. at p. 7; see also id. at p. 8.)

Aguilar

Aguilar asserts in opposition that the “motion is moot.” (Opposition, p. 1 [noting that “Aguilar’s . . . deposition was conducted and completed on August 13, 2026”]; see also id. at pp. 2-4.)

Aguilar claims the request for attorney fees and costs should be denied because:

* Aguilar’s failure to appear on June 24th “was not an instance of intentional obstruction of discovery or abuse[.]” (Id. at p. 4 [stating that Aguilar’s “cell phone was stolen in June 2026”]; see also id. at p. 5.)

* Defendant failed to file a meet-and-confer declaration. (See id. at pp. 5-8.)

* The requested amount is unsupported. (See id. at pp. 9-10.)

Defendant’s Reply

In Reply, Defendant does not press the request for terminating sanctions. The Aguilar deposition took place on August 13, 2026, but, Defendant maintains, was not completed. Plaintiff produced no documents and apparently did not look for any. Some of Defendant’s questions that did not call for privileged communications were objected to with instructions not to Answer.

Analysis

Aguilar’s deposition took place on August 13, 2026. (see Davis Decl., ¶ 45), The motion is partially moot with respect to his court-ordered appearance. Terminating sanctions are not warranted and apparently, based on the Reply, no longer sought. A separate motion is needed to secure compliance with a duty to answer questions and produce requested materials. It appears that Defendant has reserved October 19, 2026 for a hearing on a motion to compel Aguilar to complete his deposition, produce requested documents, and for monetary sanctions. As of September 22, 2026, the motion is not in the Court’s docket.

Defendant's request for attorney fees and costs is not moot. As noted above, on May 22nd, the Court ordered Aguilar to be deposed on June 24th. (See 5/22/26 Minute Order, p. 1.) On June 3rd, apparently before Aguilar's phone was stolen, Aguilar's counsel's office spoke with Aguilar "to confirm his deposition date[.]" (Davis Decl., ¶ 37.) Yet, despite notice, Aguilar failed to appear. His disobedience of the May 22nd order caused Defendant to incur expenses that it should not have had to incur. Therefore, the Court finds that this portion of the motion is not moot.

The Court intends to award attorney fees and costs to Defendant. A short continuance is appropriate, though, to allow Defendant's counsel to submit billing records showing the exact fees and costs incurred in connection with this motion. Mr. Qualls's July 2, 2026 declaration merely states that an additional \$2,825 in attorneys' fees, and an anticipated \$1,662.50 more for the reply were requested as part of this motion. (Qualls Decl. ¶ 17.) But no further explanation is given. This documentation is inadequate. (Taylor v. County of Los Angeles (2020) 50 Cal.App.5th 205, 207 [lack of contemporaneous time records justify reduction in claimed fees; "contemporaneous time records are the best evidence of lawyers' hourly work... Lawyers know this better than anyone"].) The court will set a schedule for submission of an attorney fee declaration with appropriate exhibits and Plaintiff's response.

A final point.

The Court rejects Plaintiff's "meet and confer" argument. Defendant's counsel's declaration suffices to show adequate meet-and-confer efforts to resolve this matter. (See Qualls Decl., ¶¶ 3-15.)